LASKARCI: INDIVIDUAL CRIMINAL LIABILITY, INSTITUTIONAL ACCOUNTABILITY AND POLITICAL RESPONSIBILITY

Judicial Independence, Reasoned Judgments and the Limits of Political Speech in Reconsideration Proceedings

SCHOLARLY AND PROFESSIONAL LEGAL PAPER

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Methodological and ethical note.

The author is a practising lawyer with several decades of professional experience and is not engaged as defence counsel, attorney, representative or adviser to any party in the proceedings concerning the bus crash near Laskarci. This paper is based on publicly available legal, institutional, judicial, media and scholarly sources. The factual and source cut-off is 18 October 2026. The author has no access to the complete court file and takes no position on the guilt of any individual. Prosecutorial allegations, expert findings reported in public, and judgments that are not final or that have been quashed are treated strictly in accordance with their procedural status.

Abstract

This paper examines the relationship between individual criminal liability, criminal liability of legal persons, institutional accountability, judicial independence, the right to a reasoned judgment, the presumption of innocence and the legitimate public demand for accountability in the criminal proceedings arising from the bus crash near Laskarci on 13 February 2019, in which sixteen people died and more than thirty were injured. The analysis is updated following the September 2026 decision of the Supreme Court quashing the judgment of the Skopje Court of Appeal KŽ-979/24 of 17 April 2025 and remitting the case for reconsideration. The publicly reported reasoning placed particular emphasis on whether sufficiently individualised reasons had been given for each convicted person's contribution, whether decisive appellate submissions had been addressed, and how unresolved expert-evidence issues concerning the driver's medical condition should be addressed.

The central thesis is that the quashing of a final conviction does not amount to an acquittal and does not mean that the prosecution case is unfounded. It is a corrective procedural decision requiring the competent court to reconsider the decisive issues and produce a judgment capable of withstanding legal and evidential scrutiny. At the same time, the duration of the proceedings, the quality of expert evidence, the organisation of the transport operator, the vehicle-inspection system and institutional oversight are legitimate subjects of a separate institutional analysis. Individual

criminal liability and institutional accountability must not be conflated: criminal guilt is personal and evidence-based, whereas institutional analysis has a preventive and reform-oriented function.

Particular attention is paid to Article 6 of the European Convention on Human Rights, the duty to give reasons, judicial independence and impartiality, statements by public office-holders, victims' rights, trial within a reasonable time, causation and expert evidence. The paper proposes a model of parallel accountability: individualised judicial reasoning, an institutional review of transport and control architecture, measurable recommendations on expert evidence and appellate review, and a protocol for public communication in pending cases.

Keywords: Laskarci; individual criminal liability; criminal liability of legal persons; institutional accountability; causation; expert evidence; reasoned judgment; judicial independence; political pressure; presumption of innocence; victims' rights; reasonable time; transport safety.

1. Introduction

The bus crash near Laskarci on 13 February 2019, in which sixteen people died and more than thirty were injured, left lasting human and social consequences. The families of those who died, and those who were injured, are entitled to expect that the facts will be established, responsibility will be individualised and the proceedings will conclude within a reasonable time. The accused, for their part, are entitled to have guilt determined only through lawful, adversarial and impartial proceedings. The court must decide on the evidence and the law, not on the intensity of public anger.

On 25 January 2024, the Basic Criminal Court Skopje, in case K.br.1407/19, delivered a first-instance judgment against six persons. In April 2025 the Skopje Court of Appeal reviewed the judgment and altered the sentences imposed on some of those convicted. On 9 September 2026, in case KVP2-86/25, the Supreme Court allowed applications for extraordinary review, quashed the Skopje Court of Appeal judgment KŽ-979/24 of 17 April 2025 and remitted the case for reconsideration and a fresh decision.[1]

That procedural development creates two distinct but connected questions. The first is judicial: how can a fresh decision be made legally and evidentially sustainable, with clear reasons in respect of each accused person? The second is institutional: what can be learned from the multi-year duration of the case, the contested expert issues, the organisation of the transport operator, technical control and the appellate process, without turning institutional analysis into a parallel trial?

Public debate often reduces the issue to two opposing formulas: "justice has failed because the judgment was quashed" or "the quashing proves that the accused are innocent". Neither proposition is legally accurate. Quashing is part of judicial control. It is not a final determination of guilt, but a requirement that the decision be capable of withstanding scrutiny for legality, fairness and adequacy of reasoning.

1 Supreme Court of the Republic of North Macedonia, case KVP2-86/25, decision of 9 September 2026: the applications for extraordinary review were allowed; the Skopje Court of Appeal judgment KŽ-979/24 of 17 April 2025 was quashed and the case remitted for reconsideration. Publicly reported reasoning and procedural status: MKD.mk, 18 September 2026.

2. Subject, Method and Limitations of the Research

The purpose of this paper is neither to retry the case in public nor independently to assess evidence contained in a court file to which the author has no access. The analysis concerns the legal standards relevant to individual criminal liability; liability of legal persons; organisational failures; causation; expert evidence and supplementary expert examination; the legal effect of a quashing decision; reasoned judgments; judicial independence; the presumption of innocence; political and media speech; victims' rights; trial within a reasonable time; and institutional learning.

The central research question is how the legal system can, on reconsideration, secure precisely individualised and reasoned criminal responsibility while also identifying institutional weaknesses that contributed to the proceedings lasting for several years and to decisive expert and legal issues remaining contested.

The paper applies normative, jurisprudential, doctrinal, functional and institutional methods. The normative method distinguishes forms of responsibility and identifies the relevant domestic and Convention standards. The jurisprudential method considers the case-law of the European Court of Human Rights on reasoned decisions, independent tribunals, the presumption of innocence and reasonable time. The doctrinal method is used for fault, omission, causation and the role of expert evidence. The institutional method examines the relationship between the transport operator, technical inspection, supervisory mechanisms, courts and expert bodies.

2.1. Research hypotheses

The principal hypothesis is that a legitimate outcome requires the parallel, but normatively distinct, operation of individual criminal liability, independent appellate control and institutional learning. The subsidiary hypotheses are that: (1) quashing a judgment is a corrective mechanism, not an acquittal; (2) in a multi-defendant case liability is sustainable only if the duty, act or omission, form of fault and causal contribution of each person are separately established; (3) unresolved expert-evidence issues require a verifiable methodology and genuine adversarial testing; (4) a statement by a senior office-holder may create impermissible institutional pressure even without a formal instruction if it predetermines the judicial outcome; and (5) criminal proceedings alone cannot cure organisational, professional and supervisory weaknesses revealed around the tragic event.

2.2. Scholarly and practical contribution

The scholarly contribution lies in integrating four levels that are often discussed separately: individual criminal liability, evidential and appellate control, institutional accountability, and political/public communication. The practical contribution lies in operationalising those levels through matrices for reconsideration, causation, complex expert evidence, systemic analysis and public communication, using clear control questions and measurable institutional recommendations.

Source discipline is essential. Media reports and public statements are used for chronology and to identify publicly reported procedural issues. They are not substitutes for the authentic text of judicial decisions and are not treated as proof of guilt. Where publicly reported reasoning of the Supreme Court is used, its function is to describe the procedural reason for reconsideration, not to predict the eventual outcome.

3. Domestic and European Normative Framework

The constitutional starting point is the autonomy and independence of the courts and the presumption of innocence. An accused person cannot be treated as guilty before a final judicial determination, and the court must remain free from external instructions as to the result it is expected to reach. These guarantees are particularly important in cases of intense public interest, where political, media and human reactions are strong.[2]

The Law on Criminal Procedure gives concrete effect to the presumption of innocence, adversarial proceedings, defence rights and the system of legal remedies. Quashing a decision by a higher court is part of that system: its purpose is to cure procedural, factual or reasoning defects that prevent lawful and reviewable adjudication. Reconsideration is not a continuation of political debate; it is a judicial process constrained by law and by the procedural directions of the higher court.[3]

Substantive criminal law requires personal fault and an individualised contribution. Holding an office in a legal person, ownership status, employment position or mere presence within an organisational chain does not automatically create criminal liability. Those circumstances may be the source of a specific legal duty, but the court must establish what that duty required, whether the person could have acted differently, and how the relevant act or omission is linked to the consequence.

Article 6 of the European Convention on Human Rights is the central Convention standard. It encompasses an independent and impartial tribunal, a fair and public hearing within a reasonable time, effective defence rights and the duty to provide sufficiently reasoned judgments. Strasbourg case-law does not require a court to answer every subsidiary sentence in a pleading, but it does require a response to decisive submissions capable of affecting the outcome.[4]

The presumption of innocence under Article 6 § 2 also has a communicative dimension. Public officials may express sympathy, concern about delay, demands for institutional efficiency and support for victims. The line is crossed where identified accused persons are presented as guilty before a final determination or where the court receives an institutional signal that a particular outcome is politically mandatory.[5]

4. Factual and Procedural Framework

The crash occurred on 13 February 2019 when a bus carrying passengers on the Skopje–Gostivar route left the motorway near Laskarci. Public sources report sixteen deaths and more than thirty

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2 Constitution of the Republic of North Macedonia, in particular Article 13(1) and Amendment XXV (replacing Article 98): presumption of innocence and the autonomy and independence of the courts. Official text: https://ustavensud.mk/mk/ustav/.

3 Law on Criminal Procedure, Official Gazette of the Republic of Macedonia No. 150/2010, as subsequently amended, especially Articles 2, 5 and 6. Legislative status: LDBIS, https://ldbis.pravda.gov.mk/PregledNaZakon.aspx?id=20679. See also Gordan Kalajdziev et al., Commentary on the Law on Criminal Procedure, OSCE, Skopje, 2018.

4 ECtHR, Ruiz Torija v. Spain, no. 18390/91, 9 December 1994, especially § 29, on the duty to state sufficient reasons; Taxquet v. Belgium [GC], no. 926/05, 16 November 2010. See also CCJE, Opinion No. 11 (2008) on the Quality of Judicial Decisions.

5 ECtHR, Allenet de Ribemont v. France, no. 15175/89, 10 February 1995; Daktaras v. Lithuania, no. 42095/98, 10 October 2000; Butkevičius v. Lithuania, no. 48297/99, 26 March 2002. As a comparative/acquis standard, see Directive (EU) 2016/343, Articles 3-4. The Directive is not treated as directly applicable domestic law.

injuries. The investigation and trial addressed several groups of facts: the driver's conduct and medical condition, the technical condition and maintenance of the bus, the organisation of the transport operator, and controls undertaken at the technical-inspection station.

The first-instance judgment was delivered on 25 January 2024 by the Basic Criminal Court Skopje, in case K.br.1407/19, against six persons. In April 2025 the Skopje Court of Appeal ruled on the appeals and increased the sentences of some defendants. In September 2026 the Supreme Court quashed the appellate judgment and remitted the case. According to the publicly released reasoning, the principal concerns included insufficiently specific reasons concerning each convicted person's contribution, unanswered appellate submissions, and the absence of a supplementary expert examination concerning the driver's medical condition.[6]

The chronology must be read procedurally. A quashed judgment is not a current final basis for a definitive statement of guilt. At the same time, quashing neither erases the proceedings nor amounts to an acquittal. The case returns to renewed appellate consideration within the scope determined by the Supreme Court.

As at 18 October 2026 the case remains pending. A public hearing before the Skopje Court of Appeal has been publicly announced for 10 December 2026 at 09:30. That fact is relevant to procedural status and currency, but carries no implication whatever as to the outcome of reconsideration.[7]

Date	Publicly reported event	Source function	Procedural significance
13 February 2019	Bus crash near Laskarci	Official and media sources	Originating event; not an assessment of any individual's guilt.
25 January 2024	First-instance judgment against six persons	Judicial/agency reporting	First-instance decision, subject to appellate review.
17 April 2025	Skopje Court of Appeal delivers judgment KŽ-979/24	Public procedural information	Final appellate decision until extraordinary review.
9 September 2026	Supreme Court decides case KVP2-86/25	Statement reported by several media outlets	Court of Appeal judgment quashed and case remitted for reconsideration.
18 September 2026	Supreme Court reasoning made public	MRT, Telma and other public sources	Focus on individualisation, appellate submissions and unresolved medical expert-evidence issues.
21 September 2026	Public reaction by families of victims and injured persons	Media reporting	Illustrates victims' interests and the problem of delay; has no bearing on evidential assessment.
8 October 2026	Court of Appeal briefing announces public hearing for	Public procedural information	The case remains active; scheduling information is not

6 For the publicly released reasoning of 18 September 2026, the need to individualise each convicted person's contribution and the issue of the absence of a supplementary expert examination concerning the driver's medical condition, see MRT, 18 September 2026, https://www.mrt.com.mk/node/148660; Telma, 18 September 2026, https://telma.com.mk/2026/09/18/vrhovniot-sud-go-obrazlozhi-ukinuvaneto-na-presudata-na-apelaczija-za-laskarczi/.

7 At a briefing at the Skopje Court of Appeal on 8 October 2026 it was publicly announced that the hearing in the Laskarci case was scheduled for 10 December 2026 at 09:30. See 360 Degrees, 8 October 2026, and MKD.mk, 9 October 2026.

	10 December 2026 at 09:30		an assessment of evidence or outcome.

The duration is itself a legal and institutional problem. More than seven years elapsed between the crash and the quashing of the appellate decision. Time deepens the trauma of families, prolongs legal uncertainty for the accused and weakens confidence in institutions. Yet delay cannot justify lowering the standard of judicial reasoning. A faster judgment whose defects lead to another quashing merely generates further delay.

4.1. Legal significance of the quashing decision

Quashing an appellate judgment is a corrective mechanism of judicial review. Its legal function is not to replace reconsideration with a new final outcome, but to ensure that defects which prevented reliable review are cured in the fresh decision. In a case of this complexity, that requires an express answer to decisive appellate grounds, individualisation of each person's contribution and a clear resolution of expert contradictions.

Public discourse can easily create the false equation that a quashed conviction equals acquittal. That is not procedurally correct. Following quashing, the case remains pending within the scope of the Supreme Court's decision, and the competent court must decide again on the evidence, the law and the binding procedural directions.

Equally, the existence of a corrective mechanism does not eliminate the institutional question why the defect was not cured earlier. Where a case involving many victims, multiple accused persons and complex expert evidence is remitted after years of proceedings, it is legitimate to examine the quality of appellate control, case management and professional capacity, provided that such examination is not converted into a demand for a predetermined judgment.

Quashing means	**Quashing does not mean**
A higher court has identified a defect requiring fresh adjudication.	The accused have been finally acquitted.
Decisive appellate submissions must receive a clear answer.	The prosecution case is automatically unfounded.
Evidential and legal conclusions must be reviewed again.	The court reconsidering the case is required to convict.
Independent appellate review is functioning as a corrective mechanism.	The public or political actors may dictate the new outcome.

5. Individual Criminal Liability

The foundational principle is that criminal liability is personal. In a case involving several accused persons and a complex organisational structure, the greatest danger is that a collective formula will replace proof as to the individual. For each person, the court should separately establish the relevant duty and its legal source; the act performed or omitted; what the person knew or could reasonably have known; whether there was a real possibility of acting differently; the applicable form of fault; and how that person's contribution is causally connected to the consequence.

Office within a legal person, ownership status or employment position may be relevant to identifying a duty, but none is proof of guilt in itself. With technical roadworthiness, for example, it is necessary to distinguish who conducted inspections, who approved them, who bore organisational responsibility for maintenance, who had information about defects, and who had both the legal and factual capacity to remove the vehicle from service.

A collective statement that “all contributed by their actions” is insufficient unless supported by a separate chain of reasoning for each individual. Individualisation should identify the specific contribution, the foreseeability of the risk and the role of the act or omission in the causal chain. This is not formalism. It is the essential guarantee that punishment is tied to proven personal fault.

Individualisation also serves victims. A judgment that explains precisely who is responsible for what is more stable, more intelligible and more amenable to public and appellate scrutiny than a general conclusion distributing the tragedy across a group of persons without adequate differentiation.

Level of responsibility	Key question	Competent mechanism	Standard / outcome
Individual criminal	What specific act or omission is attributed to the person, and what is the causal contribution?	Criminal court	Criminal evidential standard; conviction or acquittal.
Criminal liability of a legal person	Are the specific statutory conditions for the operator’s liability satisfied?	Criminal court	Specific statutory basis; sanction or acquittal.
Disciplinary / administrative	Was an official, professional or regulatory duty breached?	Competent authority with judicial review	Disciplinary, administrative or corrective measure.
Institutional / systemic	Which rules, controls, professional capacities or information flows failed?	Independent analysis, audit, supervision	Corrective and preventive measures.
Political	Do public office-holders bear public accountability for the functioning of the system?	Parliament, Government, public, elections	Resignation, dismissal, interpellation or other political consequence.
Civil / reparative	What damage was caused and what mechanism of compensation is available?	Civil court / civil claim in criminal proceedings	Compensation under the applicable statutory conditions.

6. Criminal Liability of the Legal Person and Organisational Failures

Transport activity is organised through a legal person, and the analysis cannot therefore stop at natural persons. It is necessary to examine the organisation of maintenance, allocation of safety responsibilities, fleet management, internal controls, the relationship with technical inspection, and the manner in which information about the technical condition of vehicles entered management decisions.

Criminal liability of a legal person is not the simple sum of the liabilities of natural persons. It has its own statutory requirements and must be proved through concrete facts concerning action in the name of, for the account of, or for the benefit of the legal person and, where relevant, through

failures of supervision, organisational decisions or ineffective control mechanisms. Liability of the manager, owner, technical officer and legal person cannot be mutually presumed.[8]

Organisational analysis has a distinct preventive value. The formal existence of an internal rulebook, service record, technical inspection or internal procedure does not establish that control worked in practice. What matters is whether irregularities could be detected, whether warnings left an auditable trail, who was obliged to act, and whether the organisation created incentives to tolerate risk.

The expression “organisational fault” may be doctrinally useful in describing a culture of risk or recurrent weaknesses, but it should not be presented as an autonomous domestic ground of criminal conviction. Positive-law liability must remain anchored in statutory conditions and proved facts.

7. Causation in Multi-Factor Events and Expert Evidence

A road-traffic disaster may result from several factors: human conduct, medical condition, technical defect, maintenance, organisation, control and road conditions. A criminal court must establish not only that a failure existed, but that it has a legally relevant connection with the consequence. Where causation is multi-factorial, the task is not to select one cause and disregard the others, but to explain the legal significance of each proved factor.

Factual causation is only the first step. A normative assessment follows: did the conduct create or impermissibly increase a risk, and did the very risk which the breached duty was designed to prevent materialise in the consequence? This prevents every antecedent administrative or technical irregularity from being transformed automatically into a legal cause of the gravest result.[9]

Expert evidence is therefore of special importance. The court is not mechanically bound by the expert, but nor may it choose between conflicting scientific propositions without a professional basis. Where the dispute concerns the driver’s medical condition, the technical condition of the vehicle or the mechanics of the crash, the proceedings require clear questions, verifiable data, an intelligible methodology and reasons explaining why one expert conclusion is accepted and another rejected.[10]

A supplementary expert examination should not become a ritual “third opinion”. Its function is to identify the precise point of scientific disagreement, compare data and methods, state the limits of certainty and explain why experts reach different conclusions. The parties must have a genuine opportunity to question the experts and challenge their methodology.

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8 Criminal Code of the Republic of North Macedonia, especially Articles 28-a and 28-b on the criminal liability of legal persons; legislative status checked through LDBIS, including amendments published in Official Gazette No. 16/2026, https://ldbis.pravda.gov.mk/PregledNaZakon.aspx?id=4312. For comparative doctrine, see Celia Wells, Corporations and Criminal Responsibility, 2nd ed., Oxford University Press, 2001.

9 Vlado Kambovski, Criminal Law - General Part, 3rd revised and supplemented ed., Shtip, 2006; H. L. A. Hart and Tony Honoré, Causation in the Law, 2nd ed., Oxford University Press, 1985; Claus Roxin and Luís Greco, Strafrecht. Allgemeiner Teil, Band I, 5th ed., C. H. Beck, 2020.

10 Law on Criminal Procedure, Article 236 and the following provisions governing expert examination. For the publicly reported expert-evidence issue in the Laskarci case, see MRT, 18 September 2026, https://www.mrt.com.mk/node/148660.

7.1. Integrated test for causation in a multi-factor event

In a case such as Laskarci, causal analysis should not be reduced to the binary question whether one factor "caused" the crash. Factual causation must be distinguished from normative attribution, and the specific contribution of each act or omission must be identified. A technical defect, medical condition, driving conduct, maintenance and organisational oversight may all be relevant at the same time, but need not carry the same legal weight.

The analytical test below is not a substitute for the statutory rule. It is a working framework intended to discipline judicial reasoning by requiring the decision-maker to explain not merely that a failure existed, but why that failure is legally relevant to the particular consequence.

Step	Control question	Legal significance
1. Duty	What specific statutory, official or contractual duty existed?	Defines the source and scope of the obligation.
2. Act / omission	What exactly was done or omitted?	Individualises the factual basis.
3. Capacity	Could the person realistically and lawfully have acted differently?	Guards against strict liability without fault.
4. Foreseeability	What risk was, or could reasonably have been, foreseeable?	Relevant to fault and the required standard of care.
5. Counterfactual test	What would probably have happened had the duty been performed?	Tests factual causation.
6. Normative attribution	Was the consequence the materialisation of the very risk the rule sought to prevent?	Limits excessively remote causation.
7. Individual contribution	How does this person's contribution differ from those of others?	Enables an individualised judgment.

7.2. Protocol for conflicting expert evidence

Conflicting medical and technical opinions must not be resolved by selecting whichever opinion best fits a pre-existing narrative. The court should identify the actual scientific point of disagreement and ensure that the parties can genuinely test the methodology, data and limitations of each opinion.

A supplementary expert opinion is useful only if it truly resolves the contradiction. A "third opinion" which merely chooses between earlier conclusions without analysing method, measurement data and levels of certainty does not perform the necessary corrective function.

Element	Question for verification	Expected judicial response
Issue in dispute	What expert question is genuinely contested?	Precise definition of the contradiction.
Data	Did the experts work from the same and complete data?	Explanation of differences in source material.
Method	Which methods and standards were applied?	Assessment of scientific and professional justification.
Assumptions	Which assumptions influenced the conclusion?	Separation of established fact from expert assumption.

Certainty	What is the degree of certainty and what are the limitations?	Avoid presenting uncertainty as established fact.
Adversarial testing	Could the parties effectively question the experts?	A genuine opportunity to challenge the evidence.
Supplementary examination	Does the additional opinion analyse the precise point of disagreement?	Methodological resolution rather than mechanical voting.
Judicial assessment	Why does the court accept a particular expert conclusion?	Independent, intelligible and reviewable reasoning.

7.3. The reasoned judgment as an instrument of fairness and appellate control

Reasons are not a decorative element of a judgment. They are the bridge between the evidence, the legal rules and the outcome. In a complex case the court need not answer every subsidiary observation made by the parties, but it must address arguments which, if well founded, are capable of changing the result.

For each accused person there should be a visible chain of reasoning: duty – act or omission – knowledge and foreseeability – evidence – causal contribution – legal characterisation. If one of those links is missing or is replaced by a collective formula, the higher court has only a limited ability to review whether the decision is correct.

A sound judgment also performs a public function. It should enable families, the accused and the wider public to understand what has been established, what has not been established and why. Public intelligibility does not mean adapting reasons to political expectations; it means making the legal logic open to scrutiny.

Control point	**Minimum question to be answered in the reasons**
Facts	Which decisive facts have been established and by what evidence?
Contradictions	How have conflicting evidence and expert opinions been resolved?
Individualisation	What is the specific contribution of each person?
Causation	How is the act or omission linked to the consequence?
Alternative case	Why has the decisive defence or prosecution thesis not been accepted?
Legal characterisation	How do the established facts satisfy the statutory elements?
Appellate reviewability	Can the higher court follow the chain of reasoning without assumptions?

8. Institutional and Systemic Accountability as an Analytical Category

“Systemic responsibility” is not the name of a separate criminal offence. In the Laskarci context, institutional and systemic accountability are used as analytical categories for examining whether the transport and control system contained recurrent or interconnected weaknesses: the organisation of the operator, fleet maintenance, technical inspection, supervision, professional

capacity and institutional coordination. These concepts must not become substitutes for the statutory conditions of criminal liability.

The first question is normative: who had competence and with what powers? The second is factual: what information existed and who possessed it? The third is operational: what lawful measure could have been taken? The fourth is causal: would timely action have reduced the risk? The fifth is organisational: was the problem an isolated failure or a pattern the system failed to detect?

The phrase “the system failed” has public and reform value only if translated into concrete questions. A system does not conduct a technical inspection or sign a work order; institutions, companies and individuals do. Yet focusing only on the last human link may conceal defects in organisational design and control that made the failure possible.

An independent institutional analysis can be conducted without replacing criminal proceedings. Its purpose is to determine what should change in rules, professional capacity, documentation, digital audit trails and supervision. It applies a different standard and must not purport to declare criminal guilt.

Systemic issue	Verification	Potential measure
Fleet management	How are defects, servicing and prohibitions on use recorded?	Electronic vehicle history and automatic blocks after a critical defect.
Technical inspection	Is control substantive, traceable and independent?	Digital audit trail, random audits and separation of conflicting functions.
Medical fitness	How are relevant medical restrictions monitored with due respect for privacy?	Clear procedures and professional criteria for fitness to drive professionally.
Supervision	Which body analyses recurring risk signals?	Risk-based supervision and cross-checking of data.
Forensic expertise	Is independent supplementary expert examination available in reasonable time?	Registry/network of accredited institutions and time standards for complex expert work.

9. Comparative and Convention Lessons

Comparative analysis is not used to transplant foreign facts mechanically into a domestic case. Its function is to show how European legal systems distinguish criminal guilt, institutional learning, victims’ rights and the duty of effective judicial control.

The case-law of the European Court of Human Rights concerning accidents and hazardous activities demonstrates that the Convention does not require every accident to culminate in a criminal conviction. What matters is the existence of an adequate legal framework, an effective investigation or judicial process where required, meaningful participation by victims, and an institutional response capable of establishing facts and responsibility under the applicable standard.

Conversely, the right to a fair trial means that an accused person cannot be convicted on the basis of a general perception of “systemic guilt”. Even where a disaster reveals multi-layered weaknesses,

the judicial decision must explain the individual legal and causal link. This is where institutional and criminal analysis touch, but must not merge.

For the domestic system, the most useful comparative lesson is the dual track: the court completes the individual legal assessment while, in parallel, an independent institutional review examines technical, organisational and supervisory weaknesses and follows whether recommendations are actually implemented.

Element	Criminal proceedings	Institutional analysis	Lesson
Purpose	Determine individual criminal liability	Identify weaknesses and prevent recurrence	Different purposes require different standards.
Evidential standard	Strict criminal standard	Professional and factual assessment	An institutional failure is not automatically proof of guilt.
Outcome	Conviction or acquittal	Recommendations, reform, supervision	A criminal judgment is not the only instrument of prevention.
Public dimension	Fair proceedings and a reasoned decision	Public report and follow-up	Transparency should reinforce, not replace, independence.

10. Positive and Procedural Obligations of the State

The right to life and the State's duty to provide an effective legal and institutional response are relevant to catastrophic road-traffic events. The Convention approach does not mean that the State guarantees that an accident can never occur. It requires an adequate regulatory framework, reasonable operation of supervision in the light of known risks, and effective mechanisms for establishing facts and responsibility after the event.[11]

The procedural obligation is assessed through independence, thoroughness, reasonable expedition, participation by next of kin and the possibility of public scrutiny. In Laskarci the most visible issue is duration. A multi-year case may be explained by complexity, extensive expert evidence and legal remedies, but institutions should be able to show that they actively managed the case and reduced avoidable delay.[12]

Victims' rights and defendants' rights are not mutually exclusive. A decision that is swift but incapable of surviving legal review is not in the victims' interest. A decision that is precise but arrives after an unreasonably long period also weakens the sense of justice. The objective is a fair and efficient process leading to a stable and legally sustainable outcome.

11 ECtHR, Nicolae Virgiliu Tănase v. Romania [GC], no. 41720/13, 25 June 2019, on the State's positive and procedural obligations in the context of serious accidents and the need for an effective legal and institutional response. See also Öneryıldız v. Turkey [GC], no. 48939/99, 30 November 2004, concerning positive obligations in the context of dangerous activities.

12 Law on Criminal Procedure, Article 6; ECtHR, Kudła v. Poland [GC], no. 30210/96, 26 October 2000, on the reasonable-time requirement and effective protection against excessive duration of proceedings.

11. Presumption of Innocence and Public Statements

The presumption of innocence binds more than courts. Public officials must avoid formulations which, before a final decision, present an identifiable individual as guilty. European case-law distinguishes permissible reporting of suspicion or accusation from an impermissible declaration of guilt. Context, the speaker's office, the exact words used and the procedural stage are decisive.

This standard does not prohibit sympathy for victims, calls for efficiency, criticism of delay or discussion of institutional problems. It is legitimate to demand prompt reconsideration and professional accountability for established procedural failures. The problem arises when a particular conviction or sentence is demanded as the sole proof that "justice has been done".

Following the quashing in September 2026, public language must describe the procedural status with particular precision: the appellate judgment has been quashed, the case has been remitted for reconsideration, and there is no final outcome that can be treated as immutable judicial truth. This does not minimise the tragedy; it protects the legitimacy of the future decision.

12. Political Responsibility, Political Speech and Institutional Independence

Political responsibility is not a lesser form of criminal guilt, and a criminal court is not an instrument of political accountability. The Government, Parliament and political parties have a legitimate role in debating transport safety, supervision, judicial resources, duration of proceedings and the quality of institutional response. They may propose reforms, budgetary measures and control mechanisms.

After the Supreme Court's September 2026 decision, the Prime Minister publicly described the decision as a "great disappointment" and made specific criticisms concerning a number of judges and prosecutors. This paper treats those words solely as an illustration of the communication risk associated with high public office, not as an assessment of the speaker's motives. Criticism of a judicial decision is not prohibited; in a democratic society the judiciary is not beyond public debate. Yet a holder of executive office bears heightened communicative responsibility because his or her words carry institutional weight and may create the impression that a predetermined result is expected of the court.[13]

A legally responsible political message may simultaneously express dissatisfaction with delay, support for families and a demand for institutional efficiency while respecting independent evaluation of the evidence. The line is crossed where judges are personally discredited without verifiable facts, where their professional position is made dependent upon a particular outcome, or where conviction is presented as the only possible manifestation of justice.

Independence is not a privilege of the judge. It is a right of the parties. Both the accused and the injured party are entitled to a case decided by a court that does not adapt itself to the daily political

13 For the Prime Minister's publicly reported reaction after the quashing, see Sakam Da Kazam, 11 September 2026, https://sdk.mk/index.php/makedonija/dhabe-zatvorame-koga-ima-sudii-koi-gi-slushaat-naredbite-od-gazdata-reche-mitskoski-za-odlukata-na-vrhovniot-sud-da-ja-ukine-presudata-za-laskartsi/; MKD.mk, 11 September 2026. The statement is used solely as material for analysing standards of public communication while proceedings remain active.

cycle. At the same time, independence does not mean freedom from accountability: judicial decisions must be public, intelligible, reviewable and timely.[14]

12.1. Matrix of permissible and high-risk public speech

The public interest does not require institutional silence. It requires procedurally accurate language. The higher the speaker's office, the more likely the message is to be understood as an institutional signal and the greater the discipline required in its formulation.

Statement / message	Assessment	Reason
"The decision must be delivered without unjustified delay."	Permissible criticism	Seeks efficiency without dictating an outcome.
"The families deserve a complete and intelligible judicial decision."	Permissible criticism	Emphasises the quality of the process.
"The court must comply with the Supreme Court's directions."	Procedurally correct	Refers to lawful appellate control.
"These persons must be convicted again."	High risk	Predetermines a particular judicial outcome.
"The judges released the guilty."	Inaccurate / risky	Quashing is not a final acquittal.
Personal accusations of corruption without an evidential basis	Impermissible as a factual assertion	Undermines confidence without verifiable foundation.

13. The Media, Article 10 of the Convention and the Public Right to Information

The media have a central role in a case of such public importance. They inform the public about procedural stages, report the views of families, explain decisions and may reveal institutional weaknesses. Freedom of expression protects robust criticism of the justice system, particularly where it is fact-based and contributes to a debate of public interest.

Pending criminal proceedings nonetheless require procedural precision. A headline should not describe quashing as the "release of the guilty" where there is no final acquittal. Reporting should distinguish accusation, first-instance conviction, appellate decision, quashing and reconsideration. The more precise the procedural language, the smaller the risk that public debate will displace judicial assessment.

Media criticism of reasoning is legitimate, but its strongest form is documentary: compare the published decision with the issues raised on appeal and explain what was answered and what was not. In this way, public scrutiny strengthens legal culture rather than creating a parallel judgment.

14. The Role of Lawyers, Academics and the Professional Community

Lawyers, academics and professional associations can play an important corrective role in public debate. Their task is not to replace the court but to explain legal standards: what quashing means,

14 Consultative Council of European Judges (CCJE), Opinion No. 18 (2015) on the Position of the Judiciary and its Relation with the Other Powers of State in a Modern Democracy. See also ECtHR, Baka v. Hungary [GC], no. 20261/12, 23 June 2016; Morice v. France [GC], no. 29369/10, 23 April 2015.

why reasons are part of a fair trial, how causation is assessed, and where permissible criticism ends and improper pressure begins.

The professional community should be especially cautious where it has no access to the court file. An assessment of a particular expert opinion without full access to the data, methodology and examination of the expert may create false certainty. Professional discipline requires a clear distinction between what has been verified, what has merely been reported publicly, and what constitutes the author's legal analysis.

Bar and academic organisations can contribute through professional debates, case-law analysis, training on complex expert evidence, standards for public speech and proposals to improve institutional capacity. In that way the case can yield a lasting professional lesson without becoming a vehicle for personal campaigns against judges or parties.

15. Victims' Rights and Trial Within a Reasonable Time

The families of those who died and those who were injured are entitled to dignified treatment, timely information, effective participation and a decision within a reasonable time. Their interest is not merely punitive. It includes establishment of the truth, recognition of suffering, compensation and assurances that a comparable risk will be reduced in the future.[15]

A quashing decision after years of trial and the serving of sentences understandably deepens frustration and uncertainty. Public reactions from families in September 2026 illustrate precisely this dimension. Yet victims' interest in finality cannot be protected by maintaining a decision which a higher court has found insufficiently reasoned. The best protection is prompt and high-quality reconsideration.

Reasonable time is not assessed mechanically. Complexity, the conduct of the parties, the conduct of the authorities and the importance of the case to those affected must all be considered. Given both the exceptional importance and the duration of the proceedings, reconsideration should be managed under a clear procedural plan, without sacrificing adversarial rights or the quality of the reasons.

15.1. A victim-oriented procedural model

A victim-oriented approach does not mean reducing the procedural rights of defendants. On the contrary, the families' strongest long-term interest is a legally sustainable decision that does not generate another cycle of quashing. Timely information, a predictable calendar, dignified treatment and clear explanations of procedural decisions are essential.

On reconsideration, the court should organisationally minimise unnecessary delay without limiting adversarial procedure. Measures may include a pre-arranged hearing schedule, timely securing of

15 Directive 2012/29/EU establishing minimum standards on the rights, support and protection of victims of crime, consolidated version current as at 20 July 2026, https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:02012L0029-20260720. It is used as a comparative/acquis standard, not as directly applicable domestic law. See also Telma, 21 September 2026, on the publicly reported reaction of families of the deceased and injured following the quashing: https://telma.com.mk/2026/09/21/odlukata-na-vrhovniot-sud-da-se-ukine-presudata-za-laskarczi-ja-ozhivea-traumata-i-povtorno-ja-odlozhi-pravdata-velat-semejstvata-na-zhrtvite-i-povredenite-sedum-godini-po-tragedijata/.

experts and technical arrangements, and publication of procedural information that does not enter into the assessment of evidence.

Need of victims / families	Institutional response	Boundary
Timely information	Regular procedural updates on status and hearings	No prejudgment of outcome.
Reasonable time	Priority case management and appropriate resources	No curtailment of defence rights.
Intelligible decision	Clear reasoning and anonymised public publication	No simplification that distorts legal accuracy.
Establishment of truth	Thorough and adversarial examination of relevant evidence	The evidential standard is not replaced by public interest.
Prevention	Institutional review and monitoring of reforms	Kept separate from determination of criminal guilt.

16. De Lege Ferenda and Institutional Policy Recommendations

The recommendations below do not assume any outcome in the pending case. Their purpose is to convert lessons from the procedural evolution into measurable institutional measures. The proposed timeframes are indicative authorial policy horizons, not statutory or binding deadlines.

Measure	Responsible actor	Instrument	Indicative authorial timeframe	Indicator
Reconsideration matrix following a quashing decision	Court of Appeal / judicial panel	Internal working sheet for every mandatory issue and evidential question	Immediately in the case	Each decisive issue receives a separate reasoned answer.
Protocol for complex and conflicting expert evidence	Courts, Ministry of Justice, professional chambers	Standard on questions, data, methodology, supplementary expertise and examination	6–12 months	Fewer quashings caused by unresolved expert contradictions.
Registry/network of institutions for supplementary expertise	Competent ministries and professional bodies	Accreditation and organisational model	12 months	Independent supplementary expertise available within a reasonable time.
Digital audit trail for bus maintenance and critical defects	Ministry of Transport, operators, control bodies	Interoperable register	12–18 months	Verifiable history of defects, repairs and prohibitions on use.
Risk-based supervision of technical inspections	Competent inspection and transport authorities	Analytical supervision and random audits	9 months	Number of targeted controls and corrective measures.
Protocol for public communication in pending cases	Government, courts, prosecution, parties and other bodies	Ethical and communication standard	3 months	Procedurally accurate language and clear distinction between criticism and demands for an outcome.

Publication of complete anonymised decisions	Courts	Searchable database and publication timeframe	6 months	Reasoned decisions available; reduced dependence on media summaries.
Independent institutional analysis after final outcome	Parliament or an independent body established by law	Specific mandate with independence and evidence rules	6 months from final outcome	Public report with recommendations and implementation plan.
Monitoring recommendations	Government and Parliament with public oversight	Six-monthly report	Every 6 months	Evidence-based percentage of recommendations implemented.

For the immediate reconsideration, the priority should be to map every issue the Supreme Court identified as relevant and provide a visible answer to it. If further expert clarification is necessary, the subject of supplementary expertise should be narrowly and clearly defined, with access to the relevant data and genuine adversarial testing.

The fresh decision should separately identify, for each person, the act or omission, the legal duty, the form of fault and the causal contribution. Collective formulations are justified only where the evidence genuinely establishes joint conduct, and even then individual responsibility must not disappear.

16.1. Integrated model of parallel accountability

The lesson of the case should not be reduced to a choice between “criminal liability” and a “systemic problem”. These levels perform different legal functions and may proceed in parallel. The court determines personal guilt under a strict evidential standard. Institutional review examines rules, supervision, professional capacities and information flows for preventive purposes. Political accountability operates through democratic mechanisms, not by prescribing a judicial result.

This model protects justice against two opposite dangers: the creation of scapegoats and the concealment of organisational weaknesses behind the claim that “everything was an individual mistake”. Only parallel but normatively separate analysis can produce both a fair judgment and an institutional lesson.

Level	Primary question	Standard	Product
Criminal	Who is personally responsible, and for what?	Statutory elements and strict criminal evidential standard	Conviction or acquittal.
Corporate	Are the conditions for liability of the legal person satisfied?	Specific statutory basis	Sanction or acquittal.
Institutional	Which controls and procedures failed?	Professional/factual review	Corrective measures and prevention.
Political	Who bears public accountability for systemic policy?	Democratic and parliamentary mechanisms	Political consequence.
Reparative	What damage was caused and how is it compensated?	Applicable civil and special rules	Compensation / reparation.

17. Conclusion

The Laskarci case is a test of whether a legal system can at the same time be humane towards victims, fair to the accused and independent of politics. The quashing of a judgment is not the end of justice. It is a demand that justice be expressed in a decision that answers decisive arguments, resolves expert contradictions and individualises the contribution of each person.

The public is entitled to be dissatisfied with prolonged proceedings. The Government and political parties are entitled to express that dissatisfaction and to demand institutional efficiency. But their constitutional role ends where the independent assessment of evidence begins. A “fight for justice” is legitimate if it means a fight for conditions in which the court can decide lawfully, promptly and without fear; it is not legitimate if it becomes a fight for a predetermined conviction.

Independence, however, is not a shield against reasoned criticism. The court owes the families, the accused and the public a clear and reviewable decision. If a judgment cannot explain why a person is responsible and how that person’s contribution is causally linked to the consequence, a political appeal cannot fill the gap. If the judgment is legally and evidentially persuasive, political pressure is unnecessary and harmful.

In parallel with the judicial process, the State should draw institutional lessons concerning technical control, transport-risk management, the quality and availability of expert evidence, appellate control, transparency of judicial decisions and communication by public office-holders. This avoids the false choice between personal and systemic responsibility.

Justice for Laskarci will be achieved not when the loudest actor is satisfied, but when an independent court, within a reasonable time and through fair proceedings, delivers a decision capable of withstanding legal, professional and public scrutiny, and when institutions demonstrate that verifiable and measurable lessons have been learned from the tragedy. Justice is not defended by pressure on judges. It is defended by evidence, reasons and institutions that respect the limits of their own power.

Statement on Independence, Scope and Source Integrity

The author is not engaged in the proceedings concerning the Laskarci bus crash, has no access to the complete case file and represents no party. The paper is based on publicly available sources and general legal standards, checked and updated to 18 October 2026. Media sources are used for chronology, publicly reported statements and procedural orientation, not as substitutes for judicial evidence. The paper contains no assessment of the guilt of any identified person and does not constitute legal advice to participants in the proceedings.

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Source note: the internet sources and procedural status stated in this edition were rechecked as at 18 October 2026. Before any later publication, the status of the reconsideration proceedings, the then-current domestic legislation and any new relevant case-law should be checked again.

English Edition Editorial Note

This edition is a British English legal-academic rendering of the Macedonian editorial master. It is not a literal sentence-by-sentence machine translation. The translation preserves the legal propositions, procedural qualifications, structure, analytical distinctions and source discipline of the Macedonian text while using idiomatic British legal English. Domestic institutional names and case identifiers are retained in a form that remains traceable to the Macedonian source record. Where there is no exact one-to-one common-law equivalent, functionally neutral terminology is used rather than importing a foreign doctrine into North Macedonian law.